

SENATE/HOUSE FILE _____
BY (PROPOSED UTILITIES
COMMISSION BILL)

A BILL FOR

1 An Act relating to the administration of the utilities
2 commission, including the creation of the position of
3 executive director and modification of the duties and titles
4 of the chairperson and executive staff.
5 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 474.1, subsection 2, Code 2026, is
2 amended to read as follows:

3 2. a. Subject to confirmation by the senate, the governor
4 shall appoint a member as the chairperson of the commission.
5 The chairperson shall be the administrator of the utilities
6 commission. The chairperson or designated presiding officer
7 shall preside over contested cases, as defined by section
8 17A.2, meetings, as defined by section 21.2, or other
9 proceedings. The appointment as chairperson shall be for a
10 two-year term, which begins and ends as provided in section
11 69.19.

12 b. The commission, by majority vote of the members, shall
13 appoint a chief operating officer an executive director to
14 manage the operations of the utilities commission and its staff
15 under the direction of the commission. The executive director
16 shall not serve as a member of the commission and shall serve
17 at the pleasure of the commission. The commission shall set
18 the salary of the chief operating officer executive director
19 within the limits of the pay plan for exempt positions provided
20 for in section 8A.413, subsection 3, unless otherwise provided
21 by the general assembly. The initial appointment of the first
22 executive director after the effective date of this Act shall
23 be exempt from the requirements of section 8A.412 and all
24 provisions of chapter 8A relating to competitive recruitment,
25 examination, and selection processes for classified employees.
26 Following the termination of the service of the first executive
27 director appointed pursuant to this paragraph, the executive
28 director shall be subject to section 8A.412 and all provisions
29 of chapter 8A governing competitive recruitment, examination,
30 and selection processes for classified employees. The
31 commission shall oversee, evaluate, and provide direction
32 to the executive director concerning the operations of the
33 commission. The executive director shall be selected primarily
34 for administrative ability and knowledge in the field, without
35 regard to political affiliation. The commission may shall

1 employ additional personnel to fulfill its responsibilities as
2 an independent agency and carry out duties of the commission
3 as it finds necessary.

4 Sec. 2. Section 474.2, Code 2026, is amended to read as
5 follows:

6 **474.2 Certain persons barred from office.**

7 A person who is employed by any common carrier or other
8 public utility or who owns any bonds, stock, or property in
9 any public utility shall not be eligible to hold the office of
10 utilities commission member or ~~chief operating officer of the~~
11 ~~utilities commission~~ executive director. A member or ~~chief~~
12 ~~operating officer~~ executive director who enters into employment
13 with any common carrier or other public utility or who acquires
14 any stock or other interest in any common carrier or other
15 public utility after appointment as a member or ~~chief operating~~
16 ~~officer~~ executive director shall be disqualified from holding
17 or performing the duties of the office.

18 Sec. 3. Section 474.8, Code 2026, is amended to read as
19 follows:

20 **474.8 Office — time employed — expenses.**

21 The utilities commission shall have an office at the seat
22 of government. Each member shall devote the member's whole
23 time to the duties of the office, and the members, ~~chief~~
24 ~~operating officer~~ executive director, and other employees shall
25 receive their actual necessary traveling expenses while in
26 the discharge of their official duties away from the general
27 offices.

28 Sec. 4. Section 476.51, subsection 5, Code 2026, is amended
29 to read as follows:

30 5. Civil penalties collected pursuant to this section from
31 utilities providing water, electric, or gas service shall be
32 forwarded by the ~~chief operating officer~~ executive director
33 of the commission to the treasurer of state to be credited to
34 the general fund of the state and to be used only for the low
35 income home energy assistance program and the weatherization

1 assistance program administered by the department of health and
2 human services. Civil penalties collected pursuant to this
3 section from utilities providing telecommunications service
4 shall be forwarded to the treasurer of state to be credited to
5 the commerce revolving fund created in section 546.12 to be
6 used only for consumer education programs administered by the
7 commission. Penalties paid by a rate-regulated public utility
8 pursuant to this section shall be excluded from the utility's
9 costs when determining the utility's revenue requirement, and
10 shall not be included either directly or indirectly in the
11 utility's rates or charges to customers.

12 Sec. 5. Section 476.103, subsection 4, paragraph c, Code
13 2026, is amended to read as follows:

14 c. A civil penalty collected pursuant to this subsection
15 shall be forwarded by the ~~chief operating officer~~ executive
16 director of the commission to the treasurer of state to be
17 credited to the commerce revolving fund created in section
18 546.12 and to be used only for consumer education programs
19 administered by the commission.

20 EXPLANATION

21 The inclusion of this explanation does not constitute agreement with
22 the explanation's substance by the members of the general assembly.

23 This bill relates to the administration of the utilities
24 commission by creating the position of executive director
25 and modifying the duties and titles of the chairperson and
26 executive staff.

27 The bill specifies the chairperson's duties regarding
28 presiding over meetings and proceedings.

29 The bill replaces the position of chief operating officer
30 with executive director, and makes conforming changes by
31 replacing references of a chief operating officer with
32 executive director. The bill states that the commission
33 shall appoint the executive director by a majority vote,
34 the executive director will serve at the pleasure of the
35 commission, and the executive director will be overseen and

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1 evaluated by the commission. The bill also explains the
2 appointment procedure and criteria for the new position.